

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE OF AUTOMATIC STAY
(CCP 916; Varian)**

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and California Constitution, article I, sections 3 and 16.
2. This Notice is filed under Code of Civil Procedure sections 916 and 1010; California Rules of Court, rules 2.100 through 2.111, 2.256, 2.257, 3.1110, and 3.1300; and Government Code sections 68150 and 69845.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in rules 2.118 and 2.119; this paper does not present any of those grounds.

1 4. This Notice gives notice that, upon perfecting the appeal from the July 1, 2026 anti-SLAPP
2 order, further trial-court proceedings on matters embraced in or affected by the appealed order
3 are stayed by operation of law.

4
5 TO THE HONORABLE COURT, TO THE CLERK, AND TO ALL PARTIES AND THEIR AT-
6 TORNEYS OF RECORD:

7 **I. NOTICE OF PERFECTED APPEAL**

8 Plaintiff Franciscus Dylan Rosario hereby gives notice that he has filed a Notice of Appeal from the
9 order entered **July 1, 2026** (DocID **10297081**) granting Defendant CSAA Insurance Exchange's
10 special motion to strike under Code of Civil Procedure section 425.16.

- 11 1. **Filing.** The Notice of Appeal is dated **August 14, 2026** and was filed on **August 14, 2026**, via
12 File & ServeXpress under transaction ID **80347004** (approximately 2:33 p.m. PDT). Plaintiff
13 requests that the Court take judicial notice of, and take notice of, that filed Notice of Appeal
14 already on the electronic docket in this action. No Exhibit A is attached.
- 15 2. **Appellate destination.** California Court of Appeal, First Appellate District. Appellate case
16 number: TBA (to be assigned).
- 17 3. **Appealability.** An order granting or denying a special motion to strike is appealable as of
18 right. (Code Civ. Proc., §§ 425.16, subd. (i), 904.1, subd. (a)(13).)
- 19 4. **Sequencing.** Filed after the Notice of Appeal (File & ServeXpress Tx **80347004**) under the
20 Friday 2026-08-14 filing sequence, and before the August 26, 2026 hearing line, to give the
21 department notice of the automatic stay.

22 **II. AUTOMATIC STAY UNDER SECTION 916 AND VARIAN**

23 Code of Civil Procedure section 916, subdivision (a), provides that, except as otherwise provided,
24 "the perfecting of an appeal stays proceedings in the trial court upon the judgment or order ap-
25 pealed from or upon the matters embraced therein or affected thereby, including enforcement of
26 the judgment or order, but the trial court may proceed upon any other matter embraced in the action
27 and not affected by the judgment or order."

1 In *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, the Supreme Court held that an
2 appeal from an order granting an anti-SLAPP motion stays further trial-court proceedings on the
3 merits of the claims affected by that order. The stay is automatic upon perfecting the appeal; it
4 does not depend on a separate discretionary stay order. (*Varian*, 35 Cal.4th at 189-191, 198-201.)
5 The test is whether the post-appeal proceeding would interfere with the appellate court's jurisdic-
6 tion, or whether the matter is "embraced in or affected by" the appealed order. (*Varian*, 35 Cal.4th
7 at 189-190; Code Civ. Proc., § 916, subd. (a).)

8 **III. SCOPE OF THIS NOTICE (PRECISE)**

9 Plaintiff hereby gives notice that the following August 26, 2026 matters are embraced in or affected
10 by the appealed July 1, 2026 anti-SLAPP order (DocID 10297081) and are therefore stayed under
11 section 916 and *Varian*:

12 **A. CCP 425.16(C) FEE MOTION (APPROXIMATELY \$32,928.27)**

13 Defendant's motion for attorney fees and costs under Code of Civil Procedure section 425.16,
14 subdivision (c), noticed in the approximate amount of **\$32,928.27**, rests entirely on the premise
15 that Defendant is a prevailing defendant on the special motion to strike. That prevailing-party
16 status is the direct product of the appealed July 1 order. Adjudicating fees while the appeal is
17 pending would require the trial court to treat as final the very order under appellate review and
18 would interfere with the Court of Appeal's jurisdiction over that order. (*Varian*, 35 Cal.4th at
19 189-191.)

20 Any fee award under section 425.16(c) falls with reversal of the underlying anti-SLAPP order.
21 Proceeding to award fees now is therefore a proceeding "upon the matters embraced therein or
22 affected thereby." (Code Civ. Proc., § 916, subd. (a).)

23 **B. CCP 391 PREDICATES THAT DEPEND ON THE APPEALED ANTI-** 24 **SLAPP ORDER**

25 To the extent Defendant's motion to declare Plaintiff a vexatious litigant under Code of Civil Pro-
26 cedure sections 391(b)(2), 391(b)(3), 391.3, and/or 391.7 relies on:

- 27 1. the July 1, 2026 anti-SLAPP grant as a final adverse determination;

2. “prevailing party” status derived from that grant;
3. fee exposure or cost exposure predicated on that grant; or
4. any finding that claims struck by the appealed order are finally resolved against Plaintiff for section 391 purposes,

those predicates are embraced in or affected by the appealed order and are stayed. Plaintiff has separately opposed the section 391 motion on the merits (July 21-22 cohort already on file). This Notice preserves that opposition and the automatic-stay objection as to any 391 theory that treats the appealed anti-SLAPP order as final or that seeks security / prefiling relief as a downstream consequence of that order.

Calendar management and other matters outside the stayed scope identified in A and B remain with the department. If the Court concludes that any portion of the August 26 line is not automatically stayed, Plaintiff requests that the Court so state on the record and that Plaintiff be heard on the fallback application to stay or continue (Packet Doc B-3), lodged or filed as needed.

IV. RELIEF / REQUESTED COURT ACTION

Plaintiff respectfully requests that the Court:

1. **Take judicial notice of / take notice of** the Notice of Appeal already filed in this action on August 14, 2026, via File & ServeXpress transaction ID **80347004**, from the July 1, 2026 order (DocID 10297081);
2. **Recognize** that further proceedings on the CCP 425.16(c) fee motion (approximately \$32,928.27) are automatically stayed under Code of Civil Procedure section 916 and *Varian*;
3. **Recognize** that CCP 391 predicates dependent on the appealed anti-SLAPP order are likewise stayed to that extent;
4. **Take the August 26, 2026 fee motion off calendar or continue it** pending disposition of the appeal, without prejudice to resetting after remittitur if appropriate;
5. **Decline to enter** any fee award, security order, or prefiling order premised on treating the July 1 order as final while the appeal is pending; and
6. Grant such other and further relief as the Court deems just and proper.

1 **V. PRESERVATION**

2 By this Notice, Plaintiff preserves all objections to any hearing, argument, or order on the fee
3 motion or on 391 predicates embraced in the appealed order while the automatic stay is in effect.
4 Participation in any hearing under protest, or filing of a fallback continuance application, is without
5 waiver of the section 916 / *Varian* stay.
6

7 Dated: August 14, 2026

8 

9 Franciscus Dylan Rosario
10 Plaintiff, In Pro Per

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